

25STCV32068 25STCV32068

County: los-angeles

Division: Civil Law and Motion

Department: 617

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Case Number: 25STCV32068 Hearing Date: September 17, 2026 Dept: 617

Dept.

617

Date:

9-17-26

Case

#: 25STCV32068

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, Sky Vision Insurance Agency and Tiffany Xu

RESPONDING

PARTY: Plaintiff, Yu Geng

RELIEF

REQUESTED

Demurrer

to First Amended Complaint

SUMMARY

OF ACTION

On

February 6, 2026, Plaintiff Yu Geng filed the instant action against Defendants Pacific Life Insurance Company (Pacific), Tiffany Xu, and Sky Vision Insurance Agency (Sky Vision) alleging she was fraudulently induced to purchase a life insurance policy issued by Pacific. She claims that Xu, her life insurance agent and broker, represented that the policy offered "perpetual retirement income of \$190,000 or more per year, all tax-free," after 5 years and "guaranteed that the policy would yield an annual return of at least six percent (6%)." Under the policy, Plaintiff was required to make annual premium payments of \$500,000 for 5 consecutive years, totaling \$2.5 million in total premiums to be paid. Plaintiff alleges that Xu intentionally omitted "extremely excessive insurance policy costs and charges," "significant financial risks involved in the issuance" of the policy, and "failed to explain the significant risk of policy lapse in the event that the accumulated value of the policy decreased to zero."

During

the sixth year of the policy, and after Plaintiff fully paid the total \$2.5 million in premiums, Xu informed her that if she were to withdraw \$190,000 per year, the policy would lapse by year 9 or 10 due to "insufficient accumulated value to sustain the policy in force." Fearing the loss of her total investment, Plaintiff terminated the policy and was only able to recover and receive back approximately \$1.4 million of the total \$2.5 million paid. Plaintiff asserts causes of action for: (1) Breach of Contract; (2) Violation of CA Business & Professions Code §17200, et seq.; (3) Fraud and Intentional Misrepresentation; (4) Negligent Misrepresentation; (5) Negligence; (6) Breach of Fiduciary Duty; and (7) Breach of Implied Covenant of Good Faith and Fair Dealing.

RULING: Overruled.

Sky Vision and Xu demur to

Plaintiff's First Amended Complaint arguing that Plaintiff fails to join her husband who is an indispensable party and that her first through fourth, sixth, and seventh causes of action are time-barred. Plaintiff opposes the demurrer, denying that her husband is an indispensable party and maintaining that her claims are timely. Defendants' demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from

either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The

Court first rejects Defendants' argument regarding a defect of parties due to Plaintiff's failure to join her husband in the action. Defendants argue that because Plaintiff alleges the premiums were paid using the couple's life savings, proceeding in her husband's absence exposes them to multiple or inconsistent obligations. But if the premiums constitute community property, then their recovery would be community property. (*Vick v. DaCorsi* (2003) 110 Cal.App.4th 206, 212.) Management and control of the community personal property is vested in either spouse, allowing either Plaintiff or her husband to act on behalf of the community, including accepting a settlement offer. (*Id.* at p. 212.) Thus, there is no risk of double recovery by Plaintiff's husband and Defendants' demurrer on grounds of defect of parties is overruled.

The

Court next addresses Defendants' statute of limitations argument. Defendants contend that Plaintiff's causes of action for breach of contract, violation of the Business and Professions code, fraud and intentional misrepresentation, negligent misrepresentation, breach of fiduciary duty, and breach of implied covenant of good faith and fair dealing are time-barred. Their reasoning is that the disclosures and illustrations Plaintiff received prior to purchasing the policy in January 2018 were sufficient to put her on notice of the fees and costs to

be charged by Pacific and the potential underperformance of the policy. Plaintiff responds that whether the disclosures or illustrations were sufficiently clear to place her on notice is a question of fact and that she was entitled to rely on the representations of Defendants as her agents. She identifies February 2024 as the time she discovered Defendants' alleged fraud after months of communications with Defendants regarding the policy and her own investigation into the policy. The Court finds that Plaintiff has the better of the two arguments.

Plaintiff's

claims sound in fraud and are thus subject to a 3-year statute of limitations period, with the exception of the UCL claim. (Code Civ. Proc., § 338, subd. (d).) The causes of action do not accrue "until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Ibid.) The UCL claim is governed by a 4-year statute of limitations, and the discovery rule applies. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1192-97.)

On

the face of the complaint, Plaintiff's claims are not time-barred. The complaint places Plaintiff's discovery of the alleged fraud in August 2023, when Plaintiff discovered that "Xu had only provided her with a partial set of the policy materials and had intentionally concealed the final portion of the documents, which contained critical and material disclosures regarding the policy risks and charges in the subject Policy issued to her." [FAC ¶ 13.] Plaintiff filed her complaint in November 2025 and therefore the claims are timely. The policy and any attendant disclosures or illustrations are not before the Court and thus it cannot be assessed whether they were "so clear and so obvious" as to defeat Plaintiff's claims of delayed discovery. (Broberg v. The Guardian Life Ins. Co. of America (2009) 171 Cal.App.4th 912, 921.) Plaintiff, of course, was entitled to rely on the representations of Xu regarding the policy. (See Clement v. Smith (1993) 16 Cal.App.4th 39, 45 ["Absent some notice or warning, an insured should be able to rely on an agent's representations of coverage without independently verifying the accuracy of those representations by examining the relevant policy provisions"].) The demurrer on statute of limitations grounds is therefore overruled.

Sky

Vision and Xu to answer the operative complaint within 10 days.

Sky

Vision and Xu to give notice.

Dept.

617

Date:

9-17-26

Case

#: 25STCV32068

Trial

Date: None Set

PRO HAC VICE

MOVING

PARTY: Defendant, Pacific Life Insurance Company

RESPONDING

PARTY: Unopposed/Plaintiff, Yu Geng

RELIEF

REQUESTED

Motion

for Pro Hac Vice Admission

SUMMARY

OF ACTION

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the policy, Plaintiff was required to make annual premium payments of \$500,000 for 5 consecutive years, totaling \$2.5 million in total premiums to be paid. Plaintiff alleges that Xu intentionally omitted “extremely excessive insurance policy costs and charges,” “significant financial risks involved in the issuance” of the policy, and “failed to explain the significant risk of policy lapse in the event that the accumulated value of the policy decreased to zero.”

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RULING: Granted.

Defendant

Pacific moves for pro hac vice admission of attorney Irma T. Solares.

Pro hac vice admission in California is governed by California Rules of Court, rule 9.40. To be admitted pro hac vice, one must be “an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States.” (Cal. Rules of Court, rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or “regularly engaged in substantial business, professional, or other activities in the State of California.” (Ibid.)

An attorney seeking pro hac vice

admission must file a verified application in court establishing:

(1) [t]he applicant’s residence and office address; (2)[t]he courts to which the applicant has been admitted to practice and the dates of admission; (3)[t]hat the applicant is a licensee in good standing in

those courts; (4)[t]hat the applicant is not currently suspended or
disbarred in any court; (5)[t]he title of each court and cause in which the applicant
has filed an application to appear as counsel pro hac vice in
this state in the preceding two years, the date of each application, and
whether or not it was granted; and (6)[t]he name, address, and telephone number of the active
licensee of the State Bar who is attorney of record.

(Cal.
Rules of Court, rule 9.40(d).)

The application complies with California Rules of Court, rule
9.40. Solares lives and practices in Florida. She has applied for pro hac vice
admission in California state court once within the last two years. While the
proof of service indicates that the State Bar was served by mail and Plaintiff
via email, service must be made by mail on all parties who have appeared in the
case. (Cal. Rules of Court, rule 9.40(c)(1).) The application for pro hac vice
admission is granted, with counsel to file the requisite proof of service.

Pacific to give notice.

Dept.
617

Date:
9-17-26

Case
#: 25STCV32068

Trial
Date: None Set

PRO HAC VICE

MOVING
PARTY: Defendant, Pacific Life Insurance Company

RESPONDING
PARTY: Unopposed/Plaintiff, Yu Geng

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RULING: Granted.

Pacific

moves for pro hac vice admission of attorney Michael N. Wolgin.

Pro hac vice admission in California is governed by California Rules of Court, rule 9.40. To be admitted pro hac vice, one must be “an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States.” (Cal. Rules of Court, rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or “regularly engaged in substantial business, professional, or other activities in the State of California.” (Ibid.)

An attorney seeking pro hac vice admission must file a verified application in court establishing:

(1) [t]he applicant's residence and office address; (2)[t]he courts to which the applicant has been admitted to practice and the dates of admission; (3)[t]hat the applicant is a licensee in good standing in those courts; (4)[t]hat the applicant is not currently suspended or disbarred in any court; (5)[t]he title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6)[t]he name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

The application complies with California Rules of Court, rule 9.40. Wolgin lives and practices in Florida. He has applied for pro hac vice admission in California state court two times within the last two years. While the proof of service indicates that the State Bar was served by mail and Plaintiff via email, service must be made by mail on all parties who have appeared in the case. (Cal. Rules of Court, rule 9.40(c)(1).) The application for pro hac vice admission is granted, with counsel to file the requisite proof of service.

Pacific to give notice.